

24NWCV02123 24NWCV02123

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-06-30

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Case Number: 24NWCV02123 Hearing Date: June 30, 2026 Dept: P

Miguel Garcia v. Hyundai Motor America,

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This lemon law action was filed on July 11, 2024. Trial is scheduled to begin on July 27, 2026. Plaintiff Miguel Garcia (Plaintiff) now applies ex parte to advance and specially set Plaintiff's Motion to Re-Open Discovery regarding a deposition of Defendant's PMK. Plaintiff argues good cause exists because the soonest available date is after the trial date and Defendant Hyundai Motor America (Defendant) has obstructed discovery.

In opposition, Defendant argues that discovery has been closed as trial was previously set to commence on May 14, 2026, but was continued because the Court was engaged in another trial. Defendant cites this Court's Order on May 14, 2026, in which the Court set an OSC Re: Dismissal of the Entire Action for Plaintiff's Failure to Prosecute and stated "[i]f the Plaintiff is not ready on 07/27/2026, the Court will consider dismissing the case for lack of prosecution." (Order, 5/14/26.) Defendant also points to this Court's Order on June 10, 2026, in which "[t]he Court clarifie[d]: discovery is closed and the May 14, 2026 Order did not re-open discovery. At no point in the Order did the Court re-open discovery." (Order, 6/10/26.)

Plaintiff's ex parte application to re-open discovery is DENIED. The Court SPECIALLY SETS Plaintiff's Motion to Re-Open Discovery for Friday, July 10, 2026 at 9:30 AM. Defendant's Opposition is due by July 6, 2026. Plaintiff's Reply is due by July 8, 2026.

Moreover, the Court notes that no such motion is filed at this time.

This Order will take effect only upon the filing of the Motion to Re-Open Discovery by end of day, June 30, 2026.

Moving party to give notice.